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PART 4 - TERMS AND CONDITIONS

1 CONDITIONS PRECEDENT

1.1 Agreement to Come into Effect

This Agreement is conditional upon satisfaction or waiver of the Conditions.

1.2 Conditions Precedent

The Conditions are conditions precedent and are inserted solely for the benefit of [REDACTED]

1.3 Cancellation

If the Conditions are likely to not be satisfied by [REDACTED] or the Consultant (as required by the Schedule of Particulars) or waived by [REDACTED] by the Conditional Date, then:

- (a) [REDACTED] may at any time before the Conditional Date require an extension of the Conditional Date *of up to 12 months*;
- (b) If any Condition is not satisfied, or waived by [REDACTED] by the Conditional Date or the extended Conditional Date (if any), [REDACTED] may terminate this Agreement by notice to the Consultant; and
- (c) Upon termination of this Agreement under this clause, this Agreement shall come to an end and neither party shall have any further claim against the other arising under or in connection with that termination.

2 COMMENCEMENT / COMPLETION

2.1 Agreement Effective

This Agreement is effective from the Effective Date, notwithstanding the signing of this Agreement on any other date.

2.2 Term

The Consultant shall provide the Services for the term identified in the Schedule of Particulars or until the Agreement is earlier terminated.

2.3 Services Prior to Execution of this Agreement

Any Services provided prior to the date of this Agreement or satisfaction, or waiver of the Conditions (whichever occurs latest) shall be deemed to have been provided under and on the terms and conditions set out in this Agreement, and any payments which [REDACTED] has agreed to make for the Services (or in relation to anything covered by the Services) shall be treated as advanced payment of the Fee.

2.4 Extension of Term

[REDACTED] may, at any time prior to the expiry of the term (if any) identified in the Schedule of Particulars, serve notice on the Consultant requesting an extension of such term, and the Consultant shall then negotiate such extension with [REDACTED] in good faith.

3 OBLIGATIONS OF CONTACT

3.1 Information

- (a) [REDACTED] shall provide to the Consultant (without charge) all information that is available to [REDACTED] and that [REDACTED] is not prevented from disclosing due to confidentiality requirements, and which appears to [REDACTED] to be necessary and not otherwise available to the Consultant, to enable the Consultant to provide the Services.
- (b) [REDACTED] shall keep the Consultant informed on such matters as may appear to [REDACTED] to materially affect the Services.

3.2 Equipment and Facilities

- (a) [REDACTED] shall make the equipment and facilities described in the Schedule of Particulars available to the Consultant, within a reasonable time of a request at the cost agreed upon in the Schedule of Particulars, for the purpose of providing the Services. The Consultant shall not be entitled to use any other equipment or facilities of [REDACTED] (including on the Site) except with the prior written consent of [REDACTED]
- (b) [REDACTED] does not warrant that any equipment and facilities supplied by it are suitable for the intended work or of acceptable quality or condition. The Consultant acknowledges that it uses [REDACTED] equipment and facilities at its own risk in all respects.

4 OBLIGATIONS OF THE CONSULTANT

4.1 Provision of the Services

The Consultant shall:

- (a) promptly and diligently provide the Services in accordance with this Agreement;
- (b) comply with:
 - (i) all of [REDACTED] instructions in relation to the Services;
 - (ii) [REDACTED] programme for provision of the Services (including using reasonable endeavours to meet deadlines set by [REDACTED] for provision of the Services);
- (c) assist [REDACTED] with any assessment of:
 - (i) progress in the provision of the Services; and
 - (ii) payment of the Consultant as against the Schedule of Fees (if any);
- (d) advise [REDACTED] of the consequences of any changes in the programme; and
- (e) advise and assist [REDACTED] on all matters relating to the Services.

4.2 Standard of Care

- (a) Notwithstanding anything elsewhere in this Agreement, the Consultant undertakes to [REDACTED] that it has exercised and shall continue to exercise in the provision of the Services the skill, care, diligence, prudence and foresight ordinarily expected of a properly qualified and competent professional adviser with the necessary resources and experience in providing services of a similar nature, scope and complexity to the Services, having regard to best industry practice both internationally and in New Zealand.
- (b) The Consultant shall provide the Services in accordance with all applicable Law, any contract related to the provision of the Services and any applicable listing rules. If the Consultant becomes aware of any act or omission that will, or is likely to, breach any Law, any contract related to the provision of the Services or any applicable listing rules it shall as soon as reasonably practical notify [REDACTED] and shall follow [REDACTED] instructions.

4.3 Authority of the Consultant

- (a) The Consultant warrants that it has full legal capacity and authority to enter into and complete this Agreement and that it has complied with all legal requirements necessary for it to enter into a binding contract with [REDACTED]
- (b) The Consultant has no authority to act as [REDACTED] agent on any matter, save where expressly identified in Part 5 - The Services. The Consultant shall not be regarded as and shall not hold itself out as being [REDACTED] agent or partner for any other purpose and shall not bind or attempt to commit the credit of [REDACTED] save as expressly authorised by this Agreement.

4.4 Presence on Site

The Consultant shall, with [REDACTED] prior agreement, visit and be represented upon the Site and visit all off-Site places of manufacture as often as may be necessary to perform its obligations under this Agreement.

4.5 Information to be supplied by the Consultant

- (a) The Consultant shall keep [REDACTED] informed on all matters relating to the Services, including, without limitation, details of all staff employed by the Consultant in the provision of the Services.
- (b) The Consultant shall promptly:
 - (i) supply to [REDACTED] such information as [REDACTED] reasonably requests, including documentation containing sufficient instructions and detail for [REDACTED] to make full and proper use of the Services; and
 - (ii) answer all enquiries received from [REDACTED] in relation to the Services.
- (c) On termination or expiry of this Agreement, the Consultant shall, if required by [REDACTED] provide to [REDACTED] all Documents and other information held by the Consultant in relation to the supply of the Services.

4.6 [REDACTED] Property

- (a) [REDACTED] shall:
- (i) continue to have title to anything it supplies to the Consultant (including any accessories to, or spare parts for, anything it supplies to the Consultant); and
 - (ii) obtain title to anything it purchases from the Consultant on payment or upon resolution if there is any dispute as to when a payment is due,
- together "**[REDACTED] Property**".
- (b) Where practicable the Consultant shall mark any such property in its possession or control as [REDACTED] Property. When the Services are completed or terminated the Consultant shall furnish inventories to [REDACTED] of any of [REDACTED] Property that has not been consumed in the provision of the Services. The Consultant shall deliver any of [REDACTED] Property remaining upon completion, expiry or termination as directed by [REDACTED]
- (c) [REDACTED] Property shall be at the risk of the Consultant from the date it is supplied to the Consultant or produced by the Consultant (as applicable) until:
- (i) *such property is delivered to [REDACTED] or*
 - (ii) *such property is consumed in the provision of the Services in accordance with this Agreement.*
- (d) The Consultant acknowledges that:
- (i) [REDACTED] may be deemed to have a security interest (for the purposes of the Personal Property Securities Act 1999 ("**PPSA**")) in [REDACTED] Property;
 - (ii) Part 9 of the PPSA shall not apply to that deemed security interest; and
 - (iii) [REDACTED] may register a financing statement on the Personal Property Securities Register in respect of that security interest.
- (e) The Consultant shall:
- (i) provide such information and assistance as [REDACTED] may reasonably require to register the financing statement, and waives its rights under section 148 of the PPSA to receive a copy of the verification statement [REDACTED] receives; and
 - (ii) ensure that any other security interest it grants or has granted excludes [REDACTED] Property.

4.7 Co-operation

The Consultant undertakes to co-operate at all times with any other consultants which are from time to time employed by [REDACTED]

4.8 Retention of Documents and Audit Inspection

- (a) The Consultant shall retain all Documents from the Effective Date for the period specified in the Schedule of Particulars, subject to clause 4.5(c).
- (b) The Consultant acknowledges [REDACTED] right to access such Documents and shall allow [REDACTED] its representatives and any authorised public officers to inspect any Documents and shall answer queries or supply information requested by them on reasonable notice.
- (c) To the extent that any Documents are to be either or both created and maintained on computer or other electronic storage device, then the Consultant shall adhere to the procedure for backup of copies of those Documents notified by [REDACTED]

4.9 Approval of Documents

- (a) The Consultant shall when so requested by [REDACTED] submit for [REDACTED] approval, or amend, such of the Documents as [REDACTED] may specify or require.
- (b) No such approval shall affect the responsibility of the Consultant to provide the Services or relieve it of its obligations under this Agreement.

4.10 Instructions to Others by Consultant

Not used.

4.11 Attendance at Meetings

The Consultant shall attend all meetings convened by [REDACTED] to which it may be summoned.

4.12 Health, Safety and Environment

- (a) The Consultant shall, and shall ensure that all persons engaged by it (including sub-contractors):
 - (i) comply with the requirements of the Health and Safety at Work Act 2015, regulations made under that Act and any other relevant New Zealand legislative requirements;
 - (ii) where required by [REDACTED] undertake site hazard assessments and a worksite safety plan in an approved format prior to commencement of work and ensure any person performing work on their behalf is familiar with these. The site hazard assessment and a worksite safety plan shall be periodically updated if required by [REDACTED]
 - (iii) immediately advise [REDACTED] of any hazards or risks identified during the course of the work, should there be risk of harm all work activities must be suspended until appropriate controls are agreed and implemented;
 - (iv) immediately report all incidents and near misses to [REDACTED] and actively participate in [REDACTED] Learning From Events processes as required;

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- (v) ensure that all areas over which it has control or at which it performs work for [REDACTED] including all equipment owned or operated, are in an orderly state and used and maintained in a manner appropriate to avoid harm to all persons, property and environment;
 - (vi) use only personnel who are qualified and appropriately trained for the work being performed;
 - (vii) provide reporting on HSE performance as [REDACTED] shall reasonably determine;
 - (viii) ensure that all appropriate personal protective and safety equipment is available and utilised whilst performing work for [REDACTED]
 - (ix) undertake all HSE inductions and training in specific work control procedures as required by [REDACTED]
 - (x) at all times comply with all site signage;
 - (xi) comply with [REDACTED] site instructions, HSE policies and procedures and actively participate in [REDACTED] HSE programmes, if relevant to the Services, as notified by [REDACTED] from time to time;
 - (xii) are not adversely affected by fatigue or by prescription medication, drugs or alcohol and that they comply with [REDACTED] Alcohol and Drugs policy, a copy of which shall be provided to the Consultant.
- (b) [REDACTED] may prior to the start of any work by the Consultant or any persons engaged by it (including sub-contractors), require the Consultant to develop and submit for [REDACTED] approval a HSE Management Plan in the form [REDACTED] shall advise. The Consultant and any persons engaged by it (including sub-contractors) shall, at all times, work in compliance with the requirements of the approved HSE Management Plan; and
- (c) [REDACTED] may monitor and audit the compliance of the Consultant or any persons engaged by it (including sub-contractors) with the requirements of this clause. Without prejudice to any other rights it may have, [REDACTED] will discuss with the Consultant any non-compliance that is identified. The Consultant will take all reasonable steps to as soon as reasonably practicable remedy such non-compliance.

4.13 Information Technology

- (a) By mutual written agreement between the parties, the Consultant shall promptly supply:
- (i) reasonable support and maintenance services in relation to information technology and other technology Deliverables (“**IT Deliverables**”) to be agreed by the parties to ensure that [REDACTED] can effectively utilise the IT Deliverables and that the IT Deliverables remain error free and operate in conformity with this Agreement; and

- (ii) the source code in respect of any software provided to [REDACTED] sufficient to enable a reasonably competent programmer to maintain and modify the IT Deliverables.

4.14 Reporting

The Consultant shall provide to [REDACTED] a report at the frequency and containing the details required by the Schedule of Particulars. The Consultant shall also provide any other information described in the Schedule of Particulars at the frequency described in the Schedule of Particulars.

5 PERSONNEL

5.1 Key Personnel

- (a) The Consultant has appointed the persons identified in the Schedule of Particulars as Key Personnel to carry out the functions respectively allocated to them in the Schedule of Particulars. Such persons (or any replacement) shall have full authority to act on behalf of the Consultant in accordance with their respective functions, in respect of all matters connected with this Agreement.
- (b) The Consultant shall not remove any such Key Personnel (or any replacements) without the prior written consent of [REDACTED] (such consent not to be unreasonably withheld) unless such persons (or any replacements) become incapacitated or are no longer in the employment of the Consultant. The Consultant shall give [REDACTED] notice forthwith on becoming aware of any such event.
- (c) Any replacement Key Personnel shall have experience and expertise appropriate to carry out the work (which the Consultant shall demonstrate to [REDACTED] if requested in writing to do so including by providing their curricula vitae and previous employer references) and shall be subject to the prior written approval of [REDACTED] (such approval not to be unreasonably withheld).

5.2 Other Personnel

- (a) Any other personnel provided by the Consultant shall be suitably qualified, experienced and competent as required for the performance of the Consultant's obligations under this Agreement.
- (b) The Consultant shall be responsible for all staff it engages to provide the Services, whether or not employed directly by them.

5.3 Removal of Personnel

- (a) [REDACTED] shall be entitled after consultation with the Consultant to require the removal from the provision of the Services of any person employed by the Consultant whose performance or conduct in providing the Services is, in the reasonable opinion of [REDACTED] unsatisfactory. This right is subject to (i) [REDACTED] providing prior notice to the Consultant (where reasonably practicable) of any concerns it has regarding performance of the Consultant's Personnel; and (b) the relevant Personnel being provided a reasonable opportunity to remedy their performance or conduct.

- (b) In the event that any Key Personnel (or any replacements) are removed under clause 5.3(a), the Consultant shall at no cost to [REDACTED] replace such person with a person of experience and expertise appropriate to perform the functions allocated to him whose identity shall be subject to the prior written approval of [REDACTED] (such approval not to be unreasonably withheld).
- (c) In the event that any other personnel are removed under clause 5.3(a), the Consultant shall at no cost to [REDACTED] replace such person with a person of experience and expertise appropriate to provide the Services.

5.4 Meeting with Staff

If [REDACTED] calls on any individual member or members of the Consultant's staff to discuss, explain and or make presentations on any part of the Services, such individual or individuals shall be readily available to do so on reasonable notice.

5.5 [REDACTED] Representative

[REDACTED] has nominated the person or persons specified in the Schedule of Particulars to be its representative in respect of this Agreement. [REDACTED] may from time to time appoint alternative or further persons to so act and shall give the Consultant written notice of such appointment. The Consultant shall not act on the instructions of any other person. Any written approval given by [REDACTED] Representative will be deemed to be the approval of [REDACTED] and will bind [REDACTED] and the Consultant accordingly.

5.6 Consultant's Representative

The person identified in the Schedule of Particulars as the Consultant's representative shall be available to receive all instructions from [REDACTED] and shall be authorised by the Consultant to act on its behalf in relation to all matters arising under this Agreement. [REDACTED] shall not be obliged to issue instructions to any other person. Any written approval given by the Consultant's representative will be deemed to be the approval of the Consultant and will bind the Consultant accordingly.

6 ASSIGNMENT

6.1 Assignment or Subcontracting by the Consultant

The Consultant shall not assign, subcontract or transfer any right or obligation arising out of, under or in connection with this Agreement to any person without [REDACTED] prior written consent. No such assignment, subcontract, transfer or consent by [REDACTED] shall in any way relieve the Consultant from any obligations or liability under this Agreement.

6.2 Consent of [REDACTED]

- (a) The consent of [REDACTED] to the assignment, subcontracting or transfer of the Consultant's rights and obligations under this Agreement shall not be unreasonably withheld or delayed, but [REDACTED] may withhold its consent if [REDACTED] is not reasonably satisfied that the person to whom such assignment, subcontract or transfer is proposed to be made:
 - (i) has the technical expertise necessary to perform its obligations under this Agreement;

- (ii) is of such financial strength and standing as to ensure [REDACTED] is not exposed to any risks in consenting to the assignment; and
 - (iii) does not have any interests in real or apparent conflict with the provision of the Services or [REDACTED] interests generally.
- (b) [REDACTED] may as a condition of its approval of any sub-consultant require that sub-consultant to execute a warranty in favour of [REDACTED] in a form prepared by [REDACTED]

6.3 Assignment by [REDACTED]

[REDACTED] may, without the requirement for the consent of the Consultant, at any time by notice to the Consultant assign its entire rights and obligations under this Agreement.

7 INTELLECTUAL PROPERTY

7.1 Intellectual Property of Consultant

Intellectual Property of the Consultant existing at the Effective Date, including any modification to such Intellectual Property effected without reference to [REDACTED] Intellectual Property, ("Consultant's Intellectual Property") shall remain the property of the Consultant.

7.2 Intellectual Property of [REDACTED]

- (a) All Intellectual Property in the Deliverables shall vest in [REDACTED] upon receipt by the Consultant of payment in full for the Services. .
- (b) Intellectual Property of [REDACTED] existing at the Effective Date, including any modification to such intellectual property, shall remain the property of [REDACTED]

8 FURTHER PROPOSALS

- 8.1 If requested by [REDACTED] the Consultant shall submit proposals for altering the Services and the Fee shall be adjusted accordingly provided that such variations are first agreed upon by the parties in writing.
- 8.2 If the parties cannot agree on any proposals for alteration to the Services, this Agreement shall remain in full force and effect and neither party shall have any claim against the other as a result of such proposed alteration to the Services.

9 PAYMENT

9.1 General

- (a) In consideration of the provision of the Services in accordance with this Agreement, [REDACTED] will pay the Consultant the Fee. The Fee shall be paid in the instalments shown in Part 6, the Schedule of Fees together with any costs or expenses reimbursable pursuant to the Schedule of Particulars or clause 9.2(b) of this Agreement. If no Schedule of Fees is prescribed, the Consultant shall be paid at the rates and times otherwise specified in the Schedule of Particulars. The maximum Fee payable to the Consultant by [REDACTED] under this Agreement shall be that set out in the Schedule of Particulars (if any).

- (b) It shall be a condition precedent to [REDACTED] consideration of the Consultant's application for payment and the Consultant's entitlement to payment under this clause 9 that it shall have:
 - (i) submitted a report and any other information in accordance with clause 14.4 (where required); and
 - (ii) achieved any milestones by the dates identified in the Schedule of Particulars (if any).

9.2 Full Remuneration

- (a) Subject only where expressly provided otherwise, the Fee shall be full remuneration to the Consultant for all costs, expenses or overheads incurred, losses suffered or profit earned or to be earned in connection with the Services and the performance of all of its other obligations under this Agreement.
- (b) The Consultant shall be entitled to additional reimbursement at cost (excluding overheads, depreciation and profit) for other expenses, not included in the Fee, expressly authorised in writing by [REDACTED] prior to their being incurred.

9.3 Additional Services

- (a) If [REDACTED] and the Consultant agree that the Consultant is to provide services which are additional to the Services, such additional services shall (subject to express agreement otherwise) either be charged on a lump sum, or time charge, basis calculated using the rates set out in the Schedule of Particulars.
- (b) The Consultant shall maintain up to date records for all reimbursable costs and expenses incurred in providing such additional services, and in any other case where Services are to be carried out on a time charge basis, and such records shall clearly identify the relevant time incurred and work performed.

9.4 Request for Payment

- (a) Within 5 working days of the expiry of one month after the Effective Date and within 5 working days of the expiry of each month thereafter, the Consultant may, subject to the provisions of the Schedule of Fees set out in the Schedule of Particulars (if any), apply to [REDACTED] for payment of an instalment of the Fee and reimbursement of all costs and expenses for the Services provided during the preceding month by submitting a tax invoice, for the amount due plus goods and services tax, if any, charged in accordance with the Goods and Services Tax Act 1985.
- (b) Each such application shall:
 - (i) state the amount claimed in accordance with the Schedule of Fees;
 - (ii) where the invoice includes sums claimed under clause 9.2(b) or 9.3, be supported by any vouchers, time-sheets, receipts and other information which may be necessary to establish that such amounts are properly due and payable under this Agreement; and

- (iii) include a description of the Services provided in that month and their value, and any other items requested by [REDACTED]

9.5 Dispute in Payment

If [REDACTED] disputes the accuracy of any of the Consultant's invoice or wishes to dispute any claim for underpayment or make a claim for overpayment, [REDACTED] shall notify the Consultant within 7 days of receipt of the invoice. If [REDACTED] and the Consultant cannot settle the dispute within 14 days of [REDACTED] notification, then the dispute shall be determined in accordance with clause 16. [REDACTED] shall pay any undisputed amount in accordance with this clause 9.

9.6 Date for Payment

[REDACTED] shall pay all sums due to the Consultant in accordance with this Agreement (less any amount disputed) by the 20th day of the following month from the date of the Consultant's valid tax invoice.

9.7 Mode of Payment

The Fee may be paid by electronic funds transfer to an account designated by the Consultant for this purpose.

9.8 Currency

The Fee shall be paid in New Zealand dollars unless otherwise stated. No adjustment shall be made to the Fee (or any element thereof) or any other payment on account of any variation in any exchange rate.

9.9 Taxes

- (a) [REDACTED] shall pay, in addition to the Fee, all goods and services taxes levied in respect of any supply of the Services.
- (b) Subject to clause 9.10, the Consultant shall pay all other charges, levies, duties, taxes or impositions payable in respect of the Services.

9.10 Withholding Tax

Clauses 9.10(a) to (f) below shall apply if, and to the extent that, any amount paid or payable under this Agreement is an amount that is non resident withholding income or a withholding payment, or another amount from which New Zealand tax Law requires any amount to be withheld or deducted:

- (a) [REDACTED] shall be entitled to make any such deduction or withholding and shall only be liable to pay the net amount to the Consultant.
- (b) The amount of any such payment that is subject to a deduction or withholding referred to in clause 9.10(a) shall be determined by the parties. However, the Consultant is prima facie responsible for notifying [REDACTED] of the appropriate gross amount that is subject to such a deduction or withholding.
- (c) If the amounts payable under this Agreement are withholding payments, (specifically, but not limited to, payments to non resident contractors) the Consultant may be entitled to exemptions or relief from the deductions or

withholding referred to in clause 9.10(a) above. Specifically, no deductions will be made from payments made to the Consultant if:

- (i) the Consultant delivers to [REDACTED] a valid certificate of exemption issued by the Inland Revenue before the payment is made that applies to the relevant payment; or
- (ii) the Consultant delivers to [REDACTED] a statement on the Consultant's letterhead signed by an authorised representative that:
 - 1. the Consultant has not and does not intend to have any employees in New Zealand (in connection with the Services or any other project) who in aggregate have not been present or will not be present in New Zealand for 92 days or more in any 12 month period;
 - 2. the Consultant has maintained a record of the number of days in which its employees have performed services in New Zealand that can be provided to [REDACTED] if requested; and
 - 3. the Consultant is eligible for relief from New Zealand income tax in accordance with the double tax agreement between New Zealand and the Consultant's country of residence.
- (d) The Consultant will ensure in relation to any payment received by it that the correct amount of withholding has been made and, to the extent that it has not, shall immediately notify [REDACTED] to rectify the situation including refunding an appropriate amount of the payment to meet the withholding tax liability otherwise required to be made.
- (e) If for whatever reason an incorrect amount of withholding has been deducted and accounted for by [REDACTED] then the Consultant shall pay to [REDACTED] the full amount of that withholding tax liability (including any penalties and/or use of money interest) to put [REDACTED] in the same after tax position it would have been in had [REDACTED] correctly deducted and accounted for that withholding.
- (f) Clause 9.10(e) above does not apply to amounts (and only in relation to those amounts) deducted by [REDACTED] that have not been remitted by [REDACTED] to the Inland Revenue Department.

10 CHANGED CIRCUMSTANCES

10.1 Circumstances beyond the Control of the Consultant

- (a) If circumstances arise following the date of execution of this Agreement for which a party is not responsible and which are genuinely beyond its control and which make it illegal or impossible for that party ("**Affected Party**") to perform its obligations in whole or in part in accordance with this Agreement, then the Affected Party shall promptly notify the other party.
- (b) The Affected Party shall not be liable for any failure to perform its obligations to the extent the failure is caused by such circumstances, provided that this clause will not apply to any:
 - (i) lack of funds or solvency issues of the Affected Party;

- (ii) inclement weather conditions adversely affecting progress of the obligations;
- (iii) strikes, lock-outs or other industrial action;
- (iv) failure by the Affected Party's subcontractors or suppliers or the non-availability or shortage of equipment, labour, utility services, goods or materials; or
- (v) event that makes the performance of the obligations more expensive or difficult.

10.2 Duty to Mitigate

The Consultant shall exercise its best endeavours to avoid or remove the changed circumstances, and to mitigate their effect.

10.3 Accrued Obligations

The existence of changed circumstances will not affect any rights or obligations which may have accrued prior to such circumstances.

10.4 Right to Terminate

If any changed circumstances arise in terms of clause 10.1 and their effect continues for a period of 120 days or more, [REDACTED] may give to the Consultant notice of termination, which shall take effect 20 days after the giving of the notice if at the end of the 20 day period the effect continues.

11 WARRANTY AND LIABILITY

11.1 Warranty

The Consultant warrants, without prejudice to any other provision of this Agreement, that the Services supplied by the Consultant under this Agreement shall be performed in accordance with:

- (a) all applicable Laws; and**
- (b) the requirements of the Agreement.**

11.2 Defective Services

If any Services provided by the Consultant under this Agreement are defective or partly or wholly unperformed by the due date for performance ("Non-Compliant Services") and the parties have not agreed an extension to the due date, [REDACTED] may require the Consultant to rectify, perform or re-perform such Non-Compliant Services at the Consultant's own cost.

11.3 Compliance

The Consultant is responsible for the payment of any fine or penalty imposed on the Consultant as a result of the Consultant's failure to comply with any Law.

11.4 Not used.

11.5 Exclusion of Loss

- (a) The maximum aggregate liability of one party to the other under or in connection with this Agreement is limited to [REDACTED].
- (b) Neither party shall be liable to the other party in connection with this Agreement for any indirect or consequential loss (including loss of profit).

11.6 No Limitation

Clause Error! Reference source not found. shall not apply to:

- (a) personal injury to or death of any person;
- (b) any liability that cannot be excluded pursuant to any Law; or
a fraudulent act or omission.

12 INSURANCE

12.1

The Consultant shall maintain insurance as specified in item M of the Schedule of Particulars from the date of commencement of this agreement for the time period stated in item M of the Schedule of Particulars.

12.2 Not used.

12.3 If requested to do so, the Consultant shall provide [REDACTED] with copies of policies, certificates of insurance or other evidence that it has complied, and continues to comply, with its obligations under clause 12.

12.4 All insurance taken out by the Consultant shall be effected with a financially secure insurer.

12.5 The Consultant shall promptly notify [REDACTED] of any circumstances or event of which it is aware, or which comes to its attention, which could reasonably give rise to a claim relating to this Agreement under any of the insurance policies referred to in item O of the Schedule of Particulars.

12.6 If Consultant fails to effect and keep in force any of the insurances it is required to effect and maintain under the Agreement, or fails to provide satisfactory evidence and copies of policies in accordance with clause 12, [REDACTED] may (at its option and without prejudice to any other right or remedy) effect insurance for the relevant coverage and pay the premiums due and recover the premiums from the Consultant.

12.7 Nothing in clause 12 limits the obligations, liabilities or responsibilities of the Consultant or [REDACTED] under the other terms of the Agreement or otherwise.

12.8 Any deductibles in respect of the insurances maintained pursuant to this clause 12 shall be payable by the Consultant except to the extent the deductible directly relates to a claim in connection with any negligent act, omission or default of [REDACTED]

13 CONFIDENTIALITY, CONFLICT OF INTEREST AND PRIVACY

13.1 Consultant Conflict of Interest

- (a) The Consultant will advise [REDACTED] of any conflicts of interest in relation to the provision of the Services. The parties will discuss and agree a conflict of interest mitigation plan if required.

13.2 Publicity and Publication

Unless otherwise specified, the Consultant shall not release public or media statements or publish material related to the Services without the prior written approval of [REDACTED]
Confidentiality

- (a) Both parties undertake to each other that they will treat as strictly confidential the terms of this Agreement, the affairs of the other party as may be communicated to them, and all information obtained by them in the context of this Agreement, and shall not divulge these without the prior written approval of the other party, except:
 - (i) to their respective officers or employees where this is necessary for the performance of its obligations under this Agreement;
 - (ii) as expressly provided in and permitted by this Agreement;
 - (iii) as required to enable a determination to be made in accordance with clause 16;
 - (iv) where the information is generally available in the public domain other than as a result of a breach of this clause; or
 - (v) as required by Law; or
 - (vi) where disclosure is required by any exchange where [REDACTED] shares may be listed.
- (b) Neither party shall use any information obtained by it under this Agreement for any purpose other than the performance of its obligations under this Agreement.
- (c) The obligations contained in this clause 0 shall endure beyond the expiry or termination of this Agreement.

13.3 Privacy

- (a) Without limiting anything in this clause 13.4 or clause 13.3, to the extent that any information disclosed to either party includes personal information (as that term is defined in the Privacy Act 2020) the receiving party will treat all such personal information in accordance with the disclosing party's instructions and the requirements of the Privacy Act 2020, and will not use, store or transfer any such personal information for the party's own purposes or the purposes of any third party.

- (b) If either party becomes aware or suspects that any unauthorised person has obtained, attempted to obtain, or may obtain access to any information containing personal information (as that term is defined in the Privacy Act 2020) related to this Agreement or has altered, used or attempted to use any of that information for purposes not authorised or permitted by the terms of this Agreement or that any of that information has been lost, destroyed or otherwise made unavailable on a permanent or temporary basis without the divulging party's prior written consent or if there is any near miss in relation to any of the foregoing ("**Security Breach**") in respect of this Agreement:
- (i) that party will, on becoming aware of such Security Breach, immediately notify the other party of that Security Breach;
 - (ii) the parties will assist each other to follow any respective privacy breach processes, which includes [REDACTED] Breach Guidance and [REDACTED] Crisis Management Process (as provided to the Supplier from time to time). The Consultant in consultation with [REDACTED] will:
 - A. take such steps as are available to it to identify any relevant unauthorised person(s);
 - B. contain and mitigate the Security Breach;
 - C. assess the nature of the Security Breach, including as to the type of information disclosed, lost or accessed and the scope of any parties to which it may have been disclosed or accessed;
 - D. investigate the cause(s) of the Security Breach and, to avoid any doubt, the Consultant must disclose to [REDACTED] details of all causes or likely causes of the Security Breach;
 - E. make all relevant personnel and subcontractors available to [REDACTED] to assist with the consequences and implications arising from the Security Breach;
 - F. if [REDACTED] requires, assist [REDACTED] to notify any affected individuals or relevant regulatory agencies and the Consultant agrees that it shall not make any such notifications without the prior written consent of [REDACTED] (not to be unreasonably withheld or delayed); and
 - G. on mutual agreement, make reasonable changes to its operations (at its own cost) that are necessary to prevent, as far as is practicable, the occurrence of the same or similar Security Breaches in the future..

14 TERMINATION

14.1 Termination or Suspension by [REDACTED]

- (a) [REDACTED] may at any time, in addition to any other rights and remedies which it may have, by 30 working days prior notice to the Consultant, terminate or suspend the Consultant's engagement under this Agreement.
- (b) Upon any termination or suspension of the Consultant's engagement under clause 10.4 or 14.1(a), [REDACTED] shall pay to the Consultant any instalments of the Fee and any other sums due to the Consultant which have accrued due prior to:
 - (i) in the case of termination under clause 10.4, the date on which the changed circumstances first arose;

- (ii) in the case of termination under clause 14.1(a), the date of such termination or suspension; or
- (iii) the Consultant having committed to appropriate non-cancellable obligations before receipt of the notice of termination.

14.2 Termination with Cause

- (a) [REDACTED] may terminate or suspend this Agreement (at its option) immediately upon notice to the Consultant in the event that:
 - (i) [REDACTED] believes on reasonable grounds that the Consultant is not complying with or is reasonable likely to not comply with any of the requirements of clause 4.12.
- (b) In the event that the Consultant:
 - (i) goes into receivership or liquidation, passes a resolution for winding up or assigning its assets or a substantial part of it for the benefit of creditors, or is otherwise declared insolvent, and in the event of any equivalent or analogous proceedings by whatever name and in whatever jurisdiction; or
 - (ii) commits a material breach of this Agreement,

[REDACTED] may serve notice on the Consultant of its intention to terminate this Agreement. Unless the Consultant takes remedial action and/or has commenced and is diligently proceeding to procure the rectification of such event, in a manner satisfactory to [REDACTED] within 10 working days of such notice, [REDACTED] may thereafter immediately either terminate or suspend this Agreement, at its option.

14.3 Post Termination

- (a) Upon receipt of a notice of termination or suspension under clause 10.4, 14.1(a) or 14.2, the Consultant shall:
 - (i) subject to clause 15.1, promptly take steps to bring the Services to an end in an orderly manner as soon as reasonably practicable and shall use its best endeavours to minimise [REDACTED] ongoing costs in relation to the Services, with all reasonable speed and economy; and
 - (ii) subject to clause 15.1, forward to [REDACTED] all Documents (whether or not completed) in the Consultant's possession of the Consultant or any subcontractor, supplier or sub-consultant.
- (b) Termination or suspension of the Consultant's engagement under this Agreement, howsoever arising, shall be without prejudice to the rights and remedies of either of the parties which have accrued prior to such termination, provided that [REDACTED] shall not be liable to compensate the Consultant for any loss of profit or other loss suffered by the Consultant as a result of the termination or suspension of the Consultant's engagement under this Agreement.

- (c) Following a suspension of the Services under clause 14.1(a) or 14.2(b), whether or not the Consultant has rectified its default, [REDACTED] may at any time require the Consultant to resume the provision of the Services in accordance with this Agreement and any payments made under clause 14.1(b) shall be treated as payments on account of the Fee.
- (d) Upon termination of this Agreement under clause 14.2, the Consultant shall reimburse [REDACTED] for all costs additional to the fees and costs payable to the Consultant under this Agreement that are incurred by [REDACTED] in completing this Agreement by other means.

14.4 Termination by the Consultant

If [REDACTED] fails to pay any amount due to the Consultant under this Agreement, or, having suspended the Consultant's appointment under clause 14.1(a), has not issued an instruction to resume provision of the Services under clause 14.3(c) within 120 days, then the Consultant may serve notice on [REDACTED] requiring payment, or a resumption of the Services as appropriate, within 20 working days. If [REDACTED] fails to pay such amount due, or legitimately dispute the Consultant's entitlement to such payment, or order the resumption of the Services, as appropriate, then the Consultant may terminate this Agreement upon 10 working days' notice.

14.5 Survival

Clauses 4.5(c), 7, 11, 13.2, 0, 14, 15 and 16 shall survive termination or expiry of this Agreement.

15 TRANSITION SERVICES

15.1 Transition Services

- (a) Upon expiry or termination of this Agreement for any reason, the Consultant shall provide mutually agreed Transition Services to [REDACTED] and provide [REDACTED] with reasonable assistance to enable the smooth and efficient handover of the provision of any uncompleted Services, [REDACTED] Intellectual Property and [REDACTED] Property, together with all Documents. Nothing in this clause limits [REDACTED] rights to recover damages from the Consultant under this Agreement or to pursue any additional or alternative remedies provided by Law.
- (b) The Consultant will upon request in the course of Transition Services:
 - (i) provide all reasonable migration assistance;
 - (ii) answer questions and provide information; and
 - (iii) surrender any remaining reports or documentation belonging to [REDACTED]
 - (iv).

15.2 Payment for Transition Services

- (a) Subject to clause 15.2(b), during the period during which [REDACTED] requires the Transition Services:
 - (i) [REDACTED] will pay the relevant charges for any services the Consultant is still continuing to supply;

- (ii) the Consultant will continue to perform such Services, as mutually agreed, to effect an orderly transition; and
- (iii) Transition Services will be provided at the rates set out in the Schedule of Particulars or at such other rates agreed in writing by the parties.

(b)

16 SETTLEMENT OF DISPUTES

16.1 Disputes

- (a) Any dispute or difference of any kind whatsoever arising between [REDACTED] and the Consultant in connection with or arising out of this Agreement or of the carrying out of the Services and whether during the provision of the Services or after their completion and whether before or after the termination, abandonment or breach of this Agreement ("a dispute") shall be settled in accordance with the provisions of this clause 16.
- (b) A dispute shall be deemed to arise when one party serves on the other a notice ("a notice of dispute") stating the nature of the dispute, together with brief particulars of the facts and circumstances relied on by the party serving the notice of dispute.
- (c) Within 10 working days of the service of the notice of dispute the parties shall meet, negotiate and seek to resolve the dispute in good faith.

16.2 Referral to CEOs

- (a) If the parties are unable to resolve the dispute or make material progress towards its resolution within 20 working days of the service of the notice of dispute, then as a condition precedent to the referral of the dispute to arbitration pursuant to clause 16.3, the dispute shall be referred to the chief executive officers of [REDACTED] and the Consultant for discussion and agreement.
- (b) The chief executive officers shall meet within **10** working days after the expiry of 20 working days of service of the notice of dispute and shall attempt to settle the dispute.
- (c) If either chief executive officer is not available, he or she may appoint a senior manager to meet in their place pursuant to this clause, provided that any senior manager appointed has not previously been involved in the dispute and has the ability to enter into a binding agreement on behalf of the company.

16.3 Arbitration

- (a) If the dispute is not resolved within **10** working days of when the dispute was first referred to the chief executive officers or senior managers in accordance with clause 16.2 then either the Consultant or [REDACTED] may require the dispute to be referred to arbitration.
- (b) Pending the arbitrator's decision, the parties shall continue to perform all their obligations under this Agreement without prejudice.

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- (c) The Second Schedule to the Arbitration Act 1993 shall apply to the arbitration. Arbitration shall take place in the place stated in the Schedule of Particulars using a single arbitrator appointed by the parties, or if they cannot agree upon an arbitrator within 10 working days from the date of the referral, by the person identified in the Schedule of Particulars. The award (including the right to determine damages) shall be final and binding on the parties.

16.4 Interlocutory or Injunctive relief

This clause does not affect either party's right to seek urgent interlocutory and/or injunctive relief from any court of competent jurisdiction.

17 CONSUMER GUARANTEES ACT WILL NOT APPLY

- 17.1 To the maximum extent permitted by the Consumer Guarantees Act (**CGA**), and notwithstanding any other term of this Agreement, the parties agree that the provisions of the CGA will not apply to this Agreement on the basis:

17.1.1 the goods and/or services (as applicable) covered by this Agreement are, or (in connection only with the guarantee of acceptable quality in section 7A of the CGA, the gas or electricity) is, both supplied and acquired in trade; and

17.1.2 the parties to this Agreement are in trade and agree to contract out of the provisions of the CGA.

- 17.2 Subject to any determination by a court to the contrary, each party acknowledges and agrees it is fair and reasonable for them to be bound by this clause.

18 CORPORATE RESPONSIBILITY

18.1 Supplier Code of Conduct

The Consultant acknowledges that [REDACTED] is committed to an ethical and sustainable supply chain. The Consultant will comply with [REDACTED] Supplier Code of Conduct found at [REDACTED] (Code). The Consultant will provide such information as reasonably requested by [REDACTED] to evidence that the Consultant is complying with the Code.

18.2 Modern Slavery

The Consultant acknowledges [REDACTED] Modern Slavery Statement found at [REDACTED]. The Consultant will have in place practices to prevent modern slavery in both the Consultant's own operations and to manage the risk of modern slavery in their supply chain. The Consultant will comply with all New Zealand labour Laws and all applicable overseas labour and modern slavery laws.

18.3 Ethical Business Conduct

The Consultant will conduct their business activities with integrity and in accordance with all applicable laws, regulations, and ethical standards, including those relating to competition, fair trading and insider trading.

18.4 Gifts

The Consultant will not make or offer payments or gifts to [REDACTED] personnel that are outside of those permitted by [REDACTED] Code of Conduct, see: [REDACTED]. The Consultant will keep a register of gifts provided to [REDACTED] and will provide a report of these gifts at [REDACTED] request.

18.5 Sanctions

The Consultant will comply with all sanctions, prohibitions or restrictions under United Nations resolutions or the trade or economic sanctions, laws or regulations of the European Union, United Kingdom, United States of America, Australia or New Zealand.

19 MISCELLANEOUS

19.1 Notices, Consents and Approvals

All notices, claims, reports, consents, approvals, agreements and other communications under this Agreement will be in writing and take effect from receipt at the address for service stated in the Schedule of Particulars. Delivery may be by hand or facsimile message or email against a confirmation of receipt (or, in the case of email, the date of return to office specified in any out of office message) or by registered letter.

19.2 Ambiguities

- (a) The several documents forming this Agreement shall be read together and in the event of ambiguities or discrepancies the same shall be explained and adjusted by [REDACTED]

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- (b) When explaining or adjusting any such ambiguity or discrepancy [REDACTED] shall have regard to the following descending order of priority of the various parts of this Agreement:
- (i) Part 1 - Articles of Agreement;
 - (ii) Part 2 - Definitions;
 - (iii) Part 3 - Schedule of Particulars;
 - (iv) Part 4 - Terms and Conditions; and then
 - (v) Part 5 - The Services.

19.3 Entire Agreement

Notwithstanding anything to the contrary expressed in or to be implied from this Agreement, this Agreement comprises only the documents referred to in the definition of "Agreement" in Part 2 and it supersedes all previous agreements between the parties in relation to the provision of the Services, save for any agreement which by its express terms survives this Agreement. Additional or different terms of other forms of agreement proposed by the Consultant during negotiations (including conditions attached to any acceptance) shall not be applicable unless expressly accepted by [REDACTED] in writing.

19.4 English Language

The English language is the ruling language of this Agreement which shall be construed and interpreted accordingly. If there is a conflict between the English language version and any other language version of this Agreement, the English language version shall prevail. All correspondence, instructions, notices, drawings, design data, certificates, specifications and information to be prepared by the Consultant under or in connection with this Agreement shall be in the English language.

19.5 No Waiver

No failure to exercise and no delay in exercising any right, power or remedy under this Agreement will operate as a waiver. Nor will any single or partial exercise of any right, power or remedy preclude any other or further exercise of that or any other right, power or remedy.

19.6 Severance

Any provision of this Agreement which is prohibited or unenforceable in any jurisdiction will be ineffective in that jurisdiction to the extent of the prohibition or unenforceability. That will not invalidate the remaining provisions of this Agreement or effect the validity or unenforceability of that provision in any other jurisdiction.

19.7 Further Assurances

Each party shall take all steps, execute all documents and do everything reasonably required by the other party to give effect to any of the actions contemplated by this Agreement.

19.8 Counterparts

This Agreement may be executed in any number of counterparts. All counterparts will be taken to constitute one instrument.

19.9 Governing Law

This Agreement shall in all respects be construed and governed by the laws of New Zealand and unless the parties otherwise agree the jurisdiction to hear and determine all disputes touching or concerning this Agreement shall be exclusively that of the courts of New Zealand.